IN THE SUPERIOR COURT OF JUDICATURE, IN THE HIGH COURT OF JUSTICE, SITTING AT SUNYANI, COURT '2' ON FRIDAY THE 11TH DAY OF APRIL 2025 BEFORE HER LADYSHIP JUSTICE WINNIE AMOATEY-OWUSU, JUSTICE OF THE HIGH COURT

SUIT NO: C10/016/2024

THE REPUBLIC

VRS.

OSEI MENSAH **RESPONDENT**

EX PARTE KWABENA AGYEMANG **APPLICANT**

JUDGMENT

The Applicant's motion on notice for contempt was originally filed on 14th November 2023. By an amended motion filed on 20th May 2024 pursuant to leave granted by this Court, differently constituted, the Applicant seeks an order of the Court, committing the Respondent for contempt and into prison on grounds that the Respondent has wilfully disobeyed or flouted and deliberately disregarded the order of the District Court, Goaso with impunity. The motion is supported by a 21-paragraphed affidavit.

The crux of the Applicant's case is that he instituted an action in the District Court, Goaso against the Respondent, therein the Defendant, claiming the

reliefs as endorsed on Exhibit A, the writ. Upon the recalcitrance of the Respondent, he applied for, and was granted an order of interlocutory injunction restraining both parties in the suit. He attached the order of interlocutory injunction as Exhibit B and contends the District Court's orders were to the effect that:

"a. That all parties are restrained together with their agents, assigns etc. from dealing with the disputed cocoa farm situate at Agyamangkrom till the final determination of the matter.

b. Registrar of the District Court, Goaso appointed Manager Receiver of the cocoa proceeds for the disputed farms.

c. Nkrumah Charles the caretaker for Defendant to join Alanda, the Plaintiff caretaker to Manage the disputed cocoa farm and pay the proceeds into Court as ordered."[sic]

The Applicant asserts the parties met the Registrar of the District Court to visit and identify the cocoa farms as well as introduce their representatives. According to the Applicant, whereas he duly introduced his representatives to the Registrar who were given the green light to continue to harvest the cocoa and take the proceeds to the Registrar, the Respondent refused to send any representatives for the Registrar to hand over the cocoa farms to. The Applicant asserts further that the Respondent and his caretaker contemptuously chased out his representatives from the farm and have since been harvesting without depositing the proceeds at the court Registry. He attached Exhibit C, which he described as a photograph of the

Respondent's caretaker and his concubine working on the cocoa pods in the farm. It is the Applicant's case further that the Respondent did not obey the warning of the Registrar but has taken over the cocoa farm since the March 2023 farming season and until now, has never paid any money to the Registrar of the District Court as ordered. That, although the orders of the District Court restrained both parties, their agents, assigns and servants from dealing with the farm, the Respondent after taking over the farm has engaged labourers for the farm and has elected not to account for the proceeds realized from the sale of the cocoa beans to the Registrar, in clear violation of the court order. Further that, the Respondent has threatened his representatives who were in charge of the cocoa farms with cutlasses and guns whilst he is harvesting the cocoa at his expense. He contends the Respondent has deliberately and wilfully refused to respect the orders of the court and has treated the orders with contempt and in the process, bringing the efficacy of the court system into disrepute. Further that, the Respondent's conduct has brought the administration of justice into gross disrepute and public ridicule. That, the Respondent must be severely punished by committing him to prison to serve as deterrent to likeminded persons to preserve the image and integrity of the justice delivery system. In addition, he prays the Respondent be made to account for all monies collected from the sale of the cocoa beans from the date of the grant of the order of injunction.

Upon service of the original motion personally on the Respondent sometime in November 2023, he filed a 22-paragraphed affidavit in opposition on 11th December 2023. Apart from admitting the action before the District Court and the application for injunction filed by the Applicant, therein the Plaintiff, the Respondent denies the rest of the Applicant's case.

The Respondent's defence is that before the Applicant instituted the action against him at the District Court, he and his caretaker were already in possession of the cocoa farm because the same belongs to him. Again, he and his caretaker were still in possession of the cocoa farm before the order of injunction was granted in March 2023 and the order has remained in force till date without being flouted in anyway either by him or his agent, privy or assign. The Respondent asserts that his caretaker is still managing the cocoa farm because the order of injunction did not divest him of his ownership and hold over the farm but rather, it is the Applicant's caretaker appointed by the court to join his caretaker to manage the cocoa farm who has refused to visit the farm and or join his caretaker to work on the farm and manage it. That, the management of a cocoa farm includes clearing the farm of weeds, applying fertilizer and pesticides, warding off thieves and preys from the farm, engaging Extension Officers to assist in best practices, pruning the cocoa trees, constant visits to the farm, amongst other daily practices and that failure of the Applicant's caretaker to take up his role and assist in the caretakership or management of the farm cannot be faulted on him and further that the Applicant's caretaker's absence does not also mean

his caretaker should stop working on the farm. It is the Respondent's defence further that the cottage where he lives abuts the cocoa farm in dispute and as such, he practically lives on the farm and so, seeing him within the farm cannot be misinterpreted to mean a disobedience of the court order. He said from March 2023 when the order was made, they were already out of the cocoa season and no harvests have been made so far which would require proceeds to be deposited into court. The Respondent contends the Applicant's Exhibit C is misleading, mischievous and not relevant to the instant action because he does not even appear in the photograph. He states that he has not breached, disregarded, disrespected, violated or flouted any orders of the District Court, neither has he done anything to spite the court or its processes. It is his case that it is rather the Applicant who is in contempt of court for his failure to make available his caretaker to join his caretaker to manage the farm in compliance with the orders of the court. It is his claim that the Applicant's case is weak, frivolous, vexatious and without a shred of merit.

In this Judgment, I have given due consideration to the affidavit evidence of the parties, the written submissions of the respective counsel, statutes and the legion of judicial authorities on contempt of court.

The High Court's power to commit for contempt is statutory, stemming from Article 126 (2) of the 1992 Constitution, with the procedural rules for invoking the said jurisdiction provided for in Order 50 of the High Court

(Civil Procedure) Rules, 2004 (C.I 47). This power seeks to safeguard the authority and dignity of the judicial process and punish conduct that tends to bring the administration of justice into disrespect or disregard.

In **Republic v. Numapau, President of the National House of Chiefs and Ors; Ex parte Ameyaw II (No. 2) [1999-2000] GLR 283,** the Supreme Court defined contempt of court as: "In brief, contempt is constituted by any act or omission tending to obstruct or interfere with the orderly administration of justice or to impair the dignity of the Court or respect of the authority." Also, in **Republic v. High Court, Accra; Ex parte Laryea Mensah [1998-99] SCGLR 360 at page 368,** the Supreme Court had this to say**:** "By definition, a person commits contempt and may be committed to prison for willfully disobeying an order of court requiring him to do any act other than the payment of money or abstain from doing some act; and the order sought to be enforced should be unambiguous and must be clearly understood by the parties concerned." See also **Republic v. Sito I; Ex parte Fordjour I [2001-2002] 1 GLR 322**.

Because contempt of court is a quasi-criminal offence and the punishment for it may include a fine or imprisonment, the standard of proof required of the Applicant is proof beyond reasonable doubt as required in criminal cases. Thus, the Applicant must first make out a prima facie case against the Respondent before the Court would turn to consider the defence put

forward by the Respondent. See **Kangah v. Kyereh & Ors [1979] GLR 458; Republic v. Numapau, President of the National House of Chiefs [supra]**

To establish contempt of court, the Applicant must prove that:

i. There is a judgment or order requiring the contemnor to do something other than the payment of money or abstain from doing something;
ii. The contemnor knew what precisely he was expected to do or abstain from doing; and
iii. The contemnor has failed or refused to comply with the terms of the judgment or order and that the disobedience is willful.

From paragraph 3 of the Applicant's amended motion, it is clear that his case revolves around the injunction order granted by the District Court, Goaso on 22nd March 2023, Exhibit B. It will also be observed that attached to the Applicant's affidavit in support, but after Exhibit B, is a subsequent order of the District Court dated 26th April 2023 which the Applicant failed to mark as an exhibit.

The injunction order, Exhibit B, reads:

"**IT IS HEREBY ORDERED that** the Plaintiff's Caretaker is appointed by the Court to join the Defendant Caretakers to Manage the disputed Cocoa farm and to bring the proceeds of the cocoa beans after deducting all the labourers fee and other Chemicals and pay into Court till final determination of the suit."

The order of 26th April 2023 also reads:

"I hereby order the Nkrumah Charles, the caretaker for defendant to join Alanda the Plaintiff's caretaker to manage the disputed Cocoa farm and pay the proceeds into court as ordered."[sic]

The injunction order and the subsequent order reproduced above are not ambiguous; they are reconcilable. It is evident both orders were directed at the Applicant's and the Respondent's caretakers and not the Applicant, the Respondent nor the Registrar of the District Court. By the orders, nothing was required of the Applicant, the Respondent nor the Registrar of the District Court. Besides the subsequent order varying whose caretaker was to join who on the farm in dispute, it also sought to cure the lacuna in the original injunction order which failed to name the specific caretakers of the parties whom the orders were directed at. The combined effect of the two orders is that the parties' caretakers, Nkrumah Charles and Alanda are responsible for the management of the cocoa farm until the final determination of the case, and that they are to pay the proceeds from the farm into court less stated expenses (costs of labour and chemicals). This means the Applicant, the Respondent and any other persons are excluded from the management of the farm pending the final determination of the suit.

Based on the clear wording of the orders, the Applicant's claim that the court appointed the Registrar as Manager and Receiver of the proceeds

from the farm is not supported by the evidence. Neither did the court order the Registrar to visit the farm with the parties in order for them to introduce their caretakers to the Registrar and for the Registrar to hand over the farm to them. Furthermore, the court did not order for the proceeds from the sale of the harvested cocoa to be paid to, or received by the Registrar. The order was for Alanda and Nkrumah Charles to pay the proceeds less stated expenses (cost of labour and chemicals) into court. When money is to be paid into court, the same is paid to court cashiers and receipted, but not to the Registrar. Similarly, the Applicant's claim that both parties were to appoint caretakers to manage the farm is not supported by the evidence because the court by its order of 26th April 2023 already appointed and named the parties' caretakers who would manage the farm.

Again, since it is the Applicant's case that Exhibit C taken on 12th May 2023 depicts the Respondent's caretaker and his concubine working on cocoa pods on the farm, the same cannot constitute evidence that the Respondent has harvested cocoa from the farm in defiance of the orders of the court. Furthermore, the Applicant's claim that the Respondent threatened his representatives with cutlasses and guns was denied by the Respondent and remained a mere allegation as the Applicant led no evidence to prove it.

From the foregoing, I find that the Applicant has failed to make out a prima facie case of contempt against the Respondent for which reason I should

proceed to consider his defence. The application is dismissed. Cost of GH¢15,000 awarded against the Applicant.

SGD.

WINNIE AMOATEY-OWUSU

JUSTICE OF THE HIGH COURT

PARTIES:

1. **APPLICANT PRESENT**
2. **RESPONDENT PRESENT**

COUNSEL:

1. **NYAMEKYE SAMUEL VASCO ESQ. FOR THE APPLICANT ABSENT**
2. **BRIDGET AMA FORIWAA WITH HAYFORD BAAH ADOMAKO ESQ. FOR ROMEO ASANTE NIMO ESQ. FOR THE RESPONDENT**